

DEPARTMENT OF LICENSES AND INSPECTIONS

REGULATIONS GOVERNING PROPERTY LICENSE AND OWNER ACCOUNTABILITY IN RELATION TO SHARED RETAINING WALLS

WHEREAS, Section 9-3901(2)(b)(.3) of The Philadelphia Code (“Code”) authorizes the Department of Licenses and Inspections (“Department”) to “promulgate regulations regarding conditions under which a license may be issued despite violations of Section PM-108.1.3 (Unsafe shared retaining walls)”; and

WHEREAS, Section 9-3903(2)(b)(.2) of the Code authorizes the Department to “promulgate regulations regarding conditions under which Certificates of Rental Suitability may be issued, despite violations of Section PM-108.1.3 (Unsafe shared retaining walls)”; and

NOW, THEREFORE, the Department adopts the following Regulations Governing Property Licenses and Owner Accountability in Relation to Shared Retaining Walls:

(1) The Department shall issue a Rental License or Certificate of Rental Suitability for a property that is subject to a violation issued under Section PM-108.1.3 (Unsafe Shared Retaining Walls), provided that the Department determines that all of the following conditions have been satisfied:

(a) The retaining wall that is the subject of the violation is a shared retaining wall for which two or more distinct property owners share legal responsibility for maintenance and repair, and no single owner has unilateral control over corrective action.

(b) Any violation relating to an unsafe retaining wall that was issued prior to December 13, 2023, the effective date of Section PM-108.1.3, has been administratively reissued by the Department under Section PM-108.1.3.

(c) The Department has determined that the condition of the retaining wall does not constitute an imminent hazard, including but not limited to a condition posing an immediate risk of collapse or threat to life, safety, or adjoining property.

(d) There are no violations against the property other than a violation of Section PM-108.1.3 (Unsafe Shared Retaining Walls) that would preclude issuance of a Rental License or Certificate of Rental Suitability.

(e) The applicant is otherwise compliant with all pre-conditions for issuance of a Rental License or Certificate of Rental Suitability, as set forth in The Philadelphia Code and regulations.

(2) Nothing in this regulation shall be construed to limit the Department's authority to require corrective action; impose timelines for bringing a property into compliance; or take additional enforcement action as otherwise authorized by The Philadelphia Code.